

25VECV06087 25VECV06087

County: los-angeles

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Case Number: 25VECV06087 Hearing Date: August 21, 2026 Dept: 107

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

COUNTY OF LOS ANGELES

NORTHWEST DISTRICT

Julio V.

Carbajal,

Plaintiff,

v.

Cesar A.

Carbajal, individually and as Trustee of the Cesar A. Carbajal Revocable
Living Trust, et al.

Defendants.

Case Number Department

25VECV06087 107

COURT'S [TENTATIVE]

ORDER RE:

Motion

to Vacate

[THE FOLLOWING IS A TENTATIVE RULING IN THE ABOVE CASE]:

Grant in part, and deny, in part.

I.

BACKGROUND

Plaintiff Julio V. Carbajal ("Plaintiff") lived at and invested in 14052-14054 Roscoe Boulevard, Panorama City, California (the "Subject Property"). (Complaint ¶ 1.) In 2002, Plaintiff transferred record title to his son, Defendant Cesar A. Carbajal for "'estate-planning' purposes." (Complaint ¶ 2.) Plaintiff "signed documents he did not understand, trusting assurances from [Defendant Cesar A. Carbajal] and his niece, Defendant Marlene Moretti . . . that he would remain the true owner, live there for life, and that the transfer was only for convenience." (Complaint ¶ 2.) Plaintiff continued to live at and maintain the Subject Property, paid for improvements, and covered "mortgage payments when rental income was misused" by Defendant Cesar A. Carbajal. (Complaint ¶ 3.) Defendant Cesar A. Carbajal "recorded new deeds, obtained loans, and treated [Plaintiff's] home as his own." (Complaint ¶ 4.) Moretti was a California real-estate agent, notary, and mortgage loan officer. (Complaint ¶ 4.) Moretti notarized and facilitated loan transactions and profited from commissions. (Complaint ¶ 5.) Specifically, Moretti was involved in a 2002 Quitclaim Deed recorded on April 17, 2002, "and later listings and communications pressuring [Plaintiff] to vacate." (Complaint ¶ 5.) Defendant Cesar A. Carbajal "recorded additional deeds and loans without [Plaintiff's] consent. By October 2024, he had recorded a new deed placing the property in his and his spouse's names as community property." (Complaint ¶ 12.) On or about September 15, 2025, Defendant Cesar A. Carbajal listed the Subject Property for \$950,000. (Complaint ¶ 13.) Moretti "orchestrated the listing through her real-estate network, pressuring [Plaintiff] to leave." (Complaint ¶ 13.)

On October 23, 2025, Plaintiff filed a complaint against Defendants Cesar A. Carbajal, individually and as Trustee of the Cesar A. Carbajal Revocable Living Trust ("Defendant"), Marlene Moretti, and Does 1 through 20, alleging causes of action for: (1) elder financial abuse (Welf. & Inst. Code section 15610.30); (2) accounting; (3) breach of fiduciary duty; (4) conversion; (5) constructive trust; (6) quiet title; (7) cancellation

of instruments; (8) injunctive relief; (9) declaratory relief; (10) intentional infliction of emotional distress; (11) negligent infliction of emotional distress; (12) promissory estoppel; (13) fraud (promissory fraud); and (14) professional negligence and statutory violations (Bus. & Prof. Code section 10176, Welf. & Inst. Code section 15610.30, and Evid. Code section 669.)

On January 30, 2026, Defendant filed a demurrer without motion to strike. On March 17, 2026, the court sustained the demurrer as to the first through ninth and eleventh through thirteenth causes of action and overruled it as to the tenth cause of action. (03/17/26 Minute Order pp. 16-17.) The court granted Plaintiff leave to amend within thirty days of the order. (03/17/26 Minute Order pp. 16-17.)

On May 11, 2026, Defendant filed an ex parte application to dismiss action (the "Ex Parte Application"). The Ex Parte Application was set for hearing May 13, 2026. (Ex Parte Application p. 1.)

On May 12, 2026, Plaintiff filed a request for dismissal of the entire action without prejudice and the dismissal was entered as requested.

On June 24, 2026, Defendant filed a motion to vacate (the "Motion"). On July 27, 2026, Defendant filed a notice of non-opposition. On July 29, 2026, Defendant filed a reply. (Defendant filed two replies. They appear to be identical.)

On August 4, 2026, the court continued the hearing on the Motion to permit the interested party, Paola Carbajal ("Real Party in Interest") to file the opposition with the court. (08/04/26 Minute Order.) That same day, Real Party in Interest filed an opposition.

II.

REQUESTS

FOR JUDICIAL NOTICE

Real Party in Interest requests the court take judicial notice of the following records:

(1) Defendant's May 2026 Notice of Ex Parte Application, Memorandum of Points and Authorities, and Declaration of

Raza N. Khan in this action;

(2) the Court's March 17, 2026
minute order in this action;

(3) Paola M. Carbajal's filed
Petition for Letters of Administration concerning the Estate of Julio V.
Carbajal; and

(4) Paola M. Carbajal's verified
Petition under Probate Code sections 850 and 859, filed May 12, 2026, in Los
Angeles Superior Court Case No. 26STPB05286.

(Opposition p. 7.)

California Rules of Court, rule 3.1113(l) states:

"[a]ny request for judicial notice must be made in a separate document listing
the specific items for which notice is requested and must comply with rule
3.1306(c)." California Rules of Court, rule 3.1306(c) states:

A party requesting judicial notice of material
under Evidence Code sections 452 or 453 must provide the
court and each party with a copy of the material. If the material is part of a
file in the court in which the matter is being heard, the party must:

(1) Specify in writing the part of the court file
sought to be judicially noticed; and

(2) Either make arrangements with the clerk to
have the file in the courtroom at the time of the hearing or confirm with
the clerk that the file is electronically accessible to the court.

Real Party in Interest's requests for judicial notice
do not comply with California Rules of Court, rule 3.1113(l) because the
requests were not made in a separate document. Real Party in Interest also
failed to provide copies of the materials. Real Party in Interest's requests
for judicial notice are denied.

III.

THE

OPPOSITION

Oppositions are due to be filed and served at least nine court days before the set hearing. (Code Civ. Proc., § 1005, subd. (b).)

The attached proof of service shows Real Party in Interest served Defendant with the opposition only seven court days before the original hearing date. (Opposition pdf p. 10.) Thus, Real Party in Interest failed to timely serve Defendant with the opposition.

Defendant requests the court not consider the untimely opposition. (Reply p. 5.) “A trial court has broad discretion to accept or reject late-filed papers.” (Jack v. Ring LLC (2023) 91 Cal.App.5th 1186, 1210, brackets removed.) The court will exercise its discretion and consider the untimely opposition.

IV.

THE

MOTION, OPPOSITION, AND REPLY

Defendant moves for an order vacating Plaintiff's request for dismissal filed on May 12, 2026, and granting Defendant's Ex Parte Application including an order dismissing Plaintiff's complaint with prejudice and expunging the lis pendens recorded against the Subject Property. (Memorandum p. 9.)

In opposition, Real Party in Interest argues Defendant has identified no facial jurisdictional defect in the dismissal. (Opposition p. 4.) Real Party in Interest notes Defendant has not argued the court lacked jurisdiction to dismiss the action because of Plaintiff's death and the court should not decide that issue against an unrepresented estate. (Opposition p. 4.) Real Party in Interest argues the court overruled the demurrer as to the tenth cause of action, so that cause of action survived the demurrer and Defendant has not shown dismissal of the entire action was void. (Opposition p. 5.) Real Party in Interest also argues restoring the pre-dismissal action would not automatically grant Defendant's Ex Parte Application. (Opposition p. 6.) Finally, Real Party in Interest argues that the pending probate proceedings support preserving the status until a representative has an opportunity to appear and be heard. (Opposition p. 6.)

In reply, Defendant argues that Real Party in Interest

“argues that due to the death of Plaintiff, the issue should not be adjudicated until a representative has been appointed or substituted” but “[t]his overlooks the fact that Defendant’s Counsel offered on several occasions to Plaintiff’s Counsel to take such actions. No such action was taken by Plaintiff, his counsel, or any purported representative.” (Reply p. 3.) Defendant further argues that “Plaintiff’s failure to amend in a timely manner meant that a dismissal with prejudice was the proper remedy as to all causes of action which the court granted the demurrer with leave to amend on, except for the IIED claim.” (Reply p. 4.) Defendant requests the court vacate Plaintiff’s request for dismissal without prejudice filed on May 12, 2026 and enter a new order dismissing with prejudice the first through ninth and eleventh through thirteenth causes of action and expunging the lis pendens. (Reply pp. 6-7.)

V.

DISCUSSION

“[O]nce a general demurrer is sustained with leave to amend and a plaintiff does not so amend within the time authorized by the court or otherwise extended by stipulation or appropriate order, he can no longer voluntarily dismiss his action pursuant to section 581, subdivision 1, even if the trial court has yet to enter a judgment of dismissal on the sustained demurrer.” (Wells v. Marina City Properties, Inc. (1981) 29 Cal.3d 781, 789.)

The court sustained the demurrer as to the first through ninth and eleventh through thirteenth causes of action and overruled it as to the tenth cause of action. (03/17/26 Minute Order pp. 16-17.) The court granted Plaintiff leave to amend within thirty days of the order. (03/17/26 Minute Order pp. 16-17.) Plaintiff did not amend the complaint. Then, on May 12, 2026, after the time to amend the complaint had expired, Plaintiff filed a request to dismiss the entire action without prejudice. The court concludes that request was improper because the court sustained the demurrer, in part, and Plaintiff’s time to amend the complaint had expired. The court, therefore, vacates the May 12, 2026, dismissal.

VI.

CONCLUSION

For the foregoing reasons, the Motion is granted, in part,

and denied, in part. The court vacates the dismissal entered on May 12, 2026. The court denies Defendant's request to hear or grant Defendant's Ex Parte Application. The court stays the action pending the appointment of a personal representative or successor in interest.

Dated: August 21, 2026 _____ Hon.
Eric Harmon

Judge of the Superior Court